TAANIT - MISHNEH TORAH

"As If We Destroyed It": The Rambam's Radical Take on Tisha BeAv

Hilchot Taaniyot Perek 5

Sefer: Mishneh Torah, Hilchot Ta'aniyot — Rambam **Perek:** 5 (the final chapter of Hilchot Ta'aniyot) **Topic:** The fixed fasts of all Israel — their purpose (teshuvah, not mourning), the four fasts, Ta'anit Esther, the Nine Days and the week of Tisha B'Av, the halachot of Tisha B'Av itself, and the post-churban decrees

Schedule note: Final Thursday-evening shiur until Elul, in preparation for Tisha B'Av. No shiur next Thursday (Tisha B'Av itself); the last shiurim of the season are Monday and Tuesday next week.

Recap — Hilchot Ta'aniyot So Far

The Rambam has five chapters on Ta'aniyot:

Perek	Content
1	The **yesod**: a Torah **mitzvah** — not to fast, but to cry out to Hashem with trumpets/shofar in times of distress and do teshuvah, and not to write troubles off as coincidence and chance. The chachamim added fasts; when fasts are established, who fasts, private fasts and how to accept them, conduct while fasting
2	The communal troubles over which the chachamim of the generation sound the alarm — plagues, wild animals, locusts, wars, persecutions, collapsing buildings; the affected city fasts and cries out, surrounding communities pray
3	The rainfall fasts specifically — escalating in severity: individuals/chachamim first, then communal series
4	The special order of tefillot at the most severe stage — seven fasts, the Torah taken out to the street, sackcloth, even **Ne'ilah** prayed. (Largely not practised nowadays, certainly outside Eretz Yisrael)

Perek 5 turns to fasts binding on **all of Am Yisrael**, everywhere — not tied to a specific afflicted community.

Halacha 1 — The Purpose: Teshuvah, Not Commemoration

יש שם ימים שכל ישראל מתענים בהם מפני הצרות שאירעו בהן, כדי לעורר הלבבות ולפתוח דרכי התשובה. ויהיה זה זכרון למעשינו הרעים ומעשה אבותינו שהיה כמעשינו עתה, עד שגרם להם ולנו אותן הצרות. שבזכרון דברים אלו נשוב להיטיב, שנאמר: והתודו את עונם ואת עון אבותם במעלם אשר מעלו בי

There are days on which all Israel fast because of the troubles that occurred on them — **in order to awaken the hearts and open the paths of teshuvah**; a reminder of our own evil deeds and of the deeds of our ancestors *which were like our deeds now*, until they caused them and us these troubles; through remembering, we return to the good.

Two questions the Rabbi raised

1. **Why this verse?** In Hilchot Teshuvah, the Rambam derives the Torah mitzvah of viduy from Bamidbar: **איש או אשה כי יעשו מכל חטאת האדם... והתודו את חטאתם אשר עשו**. Here he quotes a different verse — from Vayikra: *they shall confess their sins **and the sins of their fathers***. Why switch?
2. **Why the emphasis** "the deeds of our ancestors *which were like our deeds now*"?

The answer (Rav Kappach; the Rabbi heard it years ago from Rav Asher Weiss, and it is based on the Chasam Sofer — and it is really the simple pshat of the Rambam)

The essence of all these fasts is teshuvah — not mourning, not commemoration. (Yom Kippur is explicitly so in the Torah — **כי ביום הזה יכפר עליכם לטהר אתכם** — and Ta'anit Esther is a different creature; we mean the four fasts: 17 Tammuz, Tisha B'Av, Tzom Gedalya, 10 Tevet.)

The Rambam holds **we do not institute fasts to remember sad things and mourn the past.** We are not a religion of commemorating catastrophes. Good things — yes: Hashem took us out of Egypt, we make a festival; carried us forty years in the midbar — a festival; gave us the Torah — a festival. But commemorative days for bad events per se have no point. The foundation of these days is teshuvah.

Where did the Rambam get this? From the famous statement — which 99% of people misquote. People say: **כל דור שלא נבנה בית המקדש בימיו — כאילו נחרב בימיו** ("as if it was destroyed in its days"). That is *not* what it says. The Talmud Yerushalmi (beginning of Yoma) says:

כל דור שאינו נבנה בימיו — מעלין עליו כאילו הוא החריבו

"Any generation in which it is not rebuilt — it is accounted as if **that generation itself destroyed it**." Not the passive *nechrav* (nif'al — "it was destroyed," sad, something that happened to us, to be mourned generation after generation) but the active, causative *hu hechrivo* (hif'il) — **we destroyed it**.

*(The Yerushalmi there also notes: the first Temple fell for the three cardinal sins; the second generation — **שהיו יגעים בתורה וזהירים במצוות** — toiled in Torah and mitzvot, **אלא שהיו אוהבים את הממון ושונאים אלו את אלו שנאת חנם** — but they loved money and hated one another baselessly. We always hear about sinat chinam; we rarely hear the first half — the love and pursuit of money that corrupted them.)*

This explains everything. The fasts exist so that we do not continue the path of our ancestors. And that is why the Rambam swaps the viduy verse: not the ordinary confession of one's own sin (Bamidbar), but **והתודו את עונם ואת עון אבותם** — confess *your* sins *and your fathers'* sins. The same question arises in the daily viduy: **אבל אנחנו ואבותינו חטאנו** — why drag our parents into our confession? We are not responsible for their sins. We are responsible for **continuing their path** — for not breaking the cycle. That is the confession: yes, we sinned, and our ancestors sinned, *and we continued it* — and now we stop.

Practical framing for this period: every year the questions pour in — what may I do in the three weeks, the nine days, the week of Tisha B'Av, until when meat, and so on. All fine — but too often we drown in the restriction-details and lose the overarching picture. The Rambam opens the whole chapter with the foundation: the entire purpose of these times is **לפתוח דרכי התשובה** — so that it will not be said of our generation, **כאילו הוא החריבו**. In one halacha, the Rambam changes the perspective of the whole period.

Halachot 2–3 — The Four Fasts and What Happened on Them

Third of Tishrei — Tzom Gedalya

יום שלישי בתשרי, שבו נהרג גדליה בן אחיקם ונכבת גחלת ישראל הנשארה וסיבב להתם גלותן

Gedaliah ben Achikam was killed, "the remaining ember of Israel was extinguished, and it caused their exile to be completed."

The background (from the Nevi'im): After the churban, Nevuchadnezzar exiled most of Am Yisrael but permitted a small remnant in the south of Yehudah under Gedaliah as governor. Yishmael ben Netanya — jealous of Gedaliah (he felt Gedaliah was not of Davidic lineage, and resented subjugation to Nevuchadnezzar), and under the influence of Ba'alis king of Amon — murdered him. Gedaliah **had been warned** of the plot and refused to accept the report — the Gemara learns from here that sometimes one must accept (and speak) lashon hara for protection — and he was killed. (Whether he was killed on Rosh Hashanah with the fast postponed, or actually on the 3rd — the Rambam clearly holds he was killed on the third of Tishrei.)

Why do we fast for one man's death? ("If I died, would Gedaliah fast for *me*?" as someone once asked the Rabbi.) We are not fasting *for Gedaliah*. The consequence of his assassination was that the terrified remnant fled to Egypt — sealing the completeness of the first churban and the exile of Am Yisrael. That finale is what the fast marks.

Tenth of Tevet

שבו סמך נבוכדנאצר הרשע מלך בבל על ירושלים והביאה במצור ובמצוק

Nevuchadnezzar laid **siege** to Yerushalayim. The timeline: the siege began on 10 Tevet — two and a half years before the churban; on **9 Tammuz** the walls of the first Temple's Yerushalayim were breached; a month later, on 9 Av, the Temple itself was destroyed. We fast over the **origins**: when contemplating a tragedy, one looks not only at the event but at where it began — with the siege, despite all Yirmiyahu's warnings.

Megillat Ta'anit adds (compiled by Chizkiya ben Garon's household, in the era of Hillel and Shammai; its content is quoted in the Gemara) two further events of 10 Tevet and the days before it: the Torah was **translated into Greek** — into another language for the first time; and **Ezra HaSofer died**. Ezra in many ways replicated Moshe's role: he carried the Mesorah, stopped the intermarriage, reinstated what had been forgotten (the pesukim say they had not built Sukkot in so long they had forgotten it). The Rambam brings only the siege — the main reason — but be aware of the others.

Seventeenth of Tammuz — five things happened

י"ז בתמוז — חמשה דברים אירעו בו: נשתברו הלוחות; ובטל התמיד מבית ראשון; והובקעה העיר בחורבן שני; ושרף אפוסטמוס הרשע את התורה; והעמיד צלם בהיכל

1. **The Luchot were broken** — by Moshe.
2. **The Korban Tamid ceased** in the *first* Temple — under siege there were no longer animals for the daily offering.
3. **The city was breached** in the *second* churban (the Romans). Note: in the *first* churban the walls were breached on **9 Tammuz** (as above). The Gemara explains the chachamim did not institute two fasts eight days apart — too much — and fixed the 17th, because the second churban is the more recent one, the one we are still inside.
4. **Apostomus** (a Roman general) **burned the Torah** publicly.
5. **And placed a tzelem in the Heichal.** The Yerushalmi has two readings: **הועמד** — it *was* set up, i.e. by **Menashe** (worse — a Jewish king!); or **העמיד** — Apostomus himself set it up. The Rambam follows the second reading.

Are these three fasts strictly obligatory today?

The Gemara in Rosh Hashanah (Rav Papa) grades them: in times of persecution — obligatory; in times of **shalom** — they become days of joy; in between — **רצו מתענין, רצו אין מתענין** — voluntary. Some Rishonim (e.g. the **Rashba**) take this at face value: aside from Tisha B'Av, these fasts are strictly mandatory only when there is trouble (and one could well argue Am Yisrael is at war *now*), and mere minhag in stable times.

The Rambam brings none of this. He clearly understands **"when there is shalom" = when the Temple stands**. Temple — no fasts; no Temple — obligatory. (Hence the interesting question: did they fast during the second Temple era? The Rambam writes elsewhere that they *chose* to, per that Gemara.) And so everyone rules today — Shulchan Aruch included: these fasts are a **chiyuv**, not a custom contingent on quiet times, until the Temple is rebuilt.

Halacha 3 — Tisha B'Av: five things happened

תשעה באב — חמשה דברים אירעו בו

the night the spies returned, the people wailed, and it — **נגזר על אבותינו במדבר שלא יכנסו לארץ** was decreed the generation would not enter the Land. 2–3. **The first and second Temples were destroyed** (or began to be destroyed) on 9 Av.

2. **The great city was captured — ובת תור שמה.** The Rambam's text of the Mishnah reads **Bet Tor** (today called Beitar): tens of thousands of Israel were there, **והיה להם מלך גדול ודימו כל ישראל וגדולי החכמים שהוא המלך המשיח** — they had a great king (Bar Kochva), and all Israel *and the greatest of the chachamim* thought he was the Melech HaMashiach — **ונפל ביד הרומיים ונהרגו כולם, והיתה צרה גדולה כמו חורבן המקדש**. Our tradition places this 52 years after the churban (dates given range c. 122–130 CE). Only ~70 years had separated the first and second Temples — so hope of imminent rebuilding was live and burning; Bar Kochva led the revival, and Rome crushed it, killing thousands upon thousands to extinguish the hope (the Gemara — not to be taken literally, there is something deeper — says the blood flowed 40 mil to the sea). The catastrophe is tied to the Temple: the hope of rebuilding died with Beitar.

ובו ביום המוכן לפורענות חרש טורנוסרופוס הרשע את ההיכל וסביביו — on that day, designated for calamity, Turnus Rufus ploughed the Heichal and its surroundings — **לקיים מה שנאמר: ציון שדה תחרש** — the culmination: Zion ploughed like a field.

And again: we mark these not to wallow in the past, but so that we do not continue the deeds of our ancestors.

Halacha 4–5 — The Four Fasts in the Navi; Ta'anit Esther; Shabbat Collisions

The four fasts are explicit in the Kabbalah (the Nevi'im)

צום הרביעי וצום החמישי וצום השביעי וצום העשירי יהיה... לששון ולשמחה (Zechariah)

צום הרביעי — 17 Tammuz (the fourth month: Nisan, Iyar, Sivan, Tammuz)
צום החמישי — Tisha B'Av (the fifth month)
צום השביעי — Tzom Gedalya (the seventh month — Tishrei)
צום העשירי — 10 Tevet (the tenth month)

The thirteenth of Adar — Ta'anit Esther

ונהגו כל ישראל בזמנים אלו להתענות, וביו"ג באדר — זכר לתענית שהתענו בימי המן, שנאמר: דברי הצומות וזעקתם

Note the language: **נהגו** — a custom. And note the reason: not to remember something *sad*, but to remember **that our ancestors fasted** — the fasts Esther initiated: **לך כנוס את כל היהודים... וצומו עלי... שלושת ימים** . It appears nowhere in the Gemara; the custom arose in the Geonic period (sometime around the 7th–9th centuries). Hence it is by far the most lenient fast — the Rama goes so far as to say even minor eye-pain exempts one.

Participant question (Robert): so Ta'anit Esther carries no teshuvah-pressure like the others? **Answer:** correct — it is not a sad day and not a teshuvah day; it is purely commemorative of the fasting itself (which is why it's called Ta'anit *Esther*). **Follow-up:** but we say the fast-day Tachanunim/Selichot on it, which doesn't quite fit? **Answer:** those Selichot are very late additions (roughly the 14th–15th centuries or later) — once composed for fast days they were extended to Ta'anit Esther too, since it is structurally a fast; conceptually it is definitely not the same.

When fasts collide with Shabbat

- **13 Adar on Shabbat** (Purim on Sunday): we fast **earlier — on Thursday**. We don't push it *after* Purim, because it isn't tied to a sad date needing observance — it commemorates the fasting itself; and we don't fast Friday out of kevod Shabbat (a fast *in its proper time* may be completed on Friday, but a fast that is being moved anyway is not placed on Friday).
- **The four fasts on Shabbat** — pushed to **Sunday** (their nature is sad, teshuvah-awakening — not for Shabbat).
- If a fast falls **on Friday**, one fasts on Friday — in our fixed calendar only **Asara B'Tevet** can fall on Friday.

On all these fasts

ובכל הצומות האלו אין מתריעין ולא מתפללין בהן תפלת נעילה, אבל קורין בתורה שחרית ומנחה ויחל משה. ובכולן אוכלין ושותין בלילה — חוץ מתשעה באב

No trumpet-alarm and no Ne'ilah (unlike the severe rain-fasts of Perek 4); Torah reading of ויחל משה (the Thirteen Attributes) at Shacharit and Mincha; and on all of them one may eat and drink through the night until alot hashachar — **except Tisha B'Av**.

Halacha 6 — משנכנס אב: the Nine Days and the Week of Tisha B'Av

משנכנס אב ממעטין בשמחה. ושבת שחל תשעה באב להיות בתוכה — אסור לספר ולכבס וללבוש כלי מגוהץ... עד שיעבור התענית, ואפילו לכבס ולהניח לאחר התענית אסור

First observation: the Rambam has no "Three Weeks"

There is **no concept of three weeks** in the Rambam — the notion of a restricted three-week period is quite late. Mi-dina of the Gemara, haircuts and weddings are fully permitted in that span (the Ashkenazi restrictions are minhag). The only "three weeks" item the Rambam recognises anywhere is the minhag of the **special Haftarot** read in this period. (Music is no proof — the Rambam forbids instrumental music **all year round**, as we'll see below; and Shehecheyanu-avoidance is a much later idea.)

Second observation: where are the Nine-Days restrictions?

The commentators ask: the Talmud explicitly restricts from Rosh Chodesh Av — e.g. one who already has children may not marry; no building for luxury (a swimming pool in the nine days). Why does the Rambam list none of it here? **Answer:** he already codified it — in **Perek 3, Halacha 8**, regarding the escalating rain-fasts: reduce **business dealings**, **luxury building and planting**, and **marriages** (for those who have fulfilled peru u'revu). The Rambam understands **ממעטין בשמחה** as a general rubric that *incorporates* those same reductions: from Rosh Chodesh Av (i.e. from yesterday) one reduces non-essential business (where you can afford the hit), luxury construction, and weddings where one already has children.

The week of Tisha B'Av — the real Gemara-level restrictions

This year is a **proper** shavua shechal bo — Tisha B'Av falls on Thursday (the last two years it fell on Sunday, so we effectively had none). From Motzaei Shabbat:

- **No haircuts** — including, apparently, shaving.
- **No laundering**, and **no wearing laundered/pressed clothes** — even simple linen garments — until the fast passes; **even laundering now to set aside for after the fast is forbidden**.
- **Practical prep:** any clothes you plan to wear next week should be worn *some* hours this week so they are no longer "fresh" (the Kaf HaChayim records doing exactly this) — e.g. one shirt to shul Shabbat morning, switch to another Shabbat afternoon; a few hours suffices; use common sense. This is about outer clothes — suits, shirts, dresses — **not underwear**, which is changed daily regardless.
- Note the Rambam's repeated **עד שיעבור התענית** — *until the fast passes*: immediately after Tisha B'Av everything is permitted (the Sefardi position, and the Rambam and Shulchan Aruch read this way) — unlike the Ashkenazi practice of extending into the 10th — even

though, ironically, the Temple was still burning on the 10th (it was set alight on the afternoon of the 9th); the chachamim fixed the boundary at the fast's end. Especially this year, when the fast ends into Erev Shabbat: laundry and haircuts Thursday night are permitted.

Meat this week

וכבר נהגו ישראל שלא לאכול בשר בשבת זו ולא יכנסו למרחץ עד שיעבור התענית. ויש מקומות שנהגו לבטל השחיטה מראש חדש ועד התענית

Israel have the **custom** not to eat meat during this week and not to enter the bathhouse until the fast passes; some places shut the shechita from Rosh Chodesh. Note: (a) it is explicitly a *minhag* — mi-dina of the Gemara meat is forbidden only at the seudah hamafseket; (b) the Rambam writes **נהגו ישראל** as if universal — apparently unaware of the Temani minhag of eating meat right up to the seudah hamafseket. The Shulchan Aruch records three customs: no meat all three weeks; from Rosh Chodesh; or the week of Tisha B'Av only. The general accepted Sefardi custom today (per the Ben Ish Chai): meat **on** Rosh Chodesh itself, not after — though it remains community-dependent (many Moroccan communities eat meat through this week until Motzaei Shabbat).

Halachot 7–8 — Erev Tisha B'Av and the Seudah Hamafseket

תשעה באב לילו כיומו לכל דבר, ואין אוכלין אלא מבעוד יום, ובין השמשות שלו ספק כיום הכפורים. ולא יאכל בשר ולא ישתה יין בסעודה המפסקת; אבל שותה הוא יין מגתו שיש לו שלשה ימים או פחות, ואוכל בשר מליח שיש לו שלשה ימים או יתר. ולא יאכל שני תבשילין

- The **night is like the day** in all respects; eating only while still day; its bein hashemashot is a safek like Yom Kippur's.
- **Seudah hamafseket:** no meat, no wine — **but**: wine from the press **three days old or less** is permitted, and salted meat **three days old or more** is permitted.

Why these strange thresholds? Because it is not a din of mourning — it is zecher l'Mikdash. Two proofs it isn't mourning: (a) mourners *are* permitted meat during shiva; (b) the (later) minhag extends the meat/wine restriction into the 10th of Av — which fits remembrance of the Temple, not aveilut. The logic: sacrificial meat could be eaten at most **שני ימים ולילה אחד** (two days and one night — e.g. Shelamim, Kodashim Kalim, as we say in Shacharit) — so meat three days old is no longer "sacrifice-able"; and wine less than three days from the press is still *tosses*, unfit for libation. What we deny ourselves is specifically what *could* be offered — remembering the korbanot and nesachim we have lost. (By this din even **chicken** would be permitted at the seudah hamafseket — but the minhag today is no meat, chicken or wine at all.)

- **One cooked dish, not two** — unless it is by nature a single dish: the Syrian minhag is **mejadra** (rice and lentils) for the seudah hamafseket — two cooked components, but eaten together, one name, one dish.
- **All this applies** only when the mafseket is eaten **after chatzot** on a weekday and is genuinely the final meal. Earlier in the day (Wednesday morning this year) — fish, meat, wine, as much as you want, mi-dina. And **Erev Tisha B'Av on Shabbat**: eat all you need, **אפילו כסעודת שלמה בשעתו** — even at seudah shlishit.

Halacha 9 — the Rambam's personal reflection (not a din)

זו היא מדת כל העם שאינן יכולין לסבול יתר מדאי. אבל חסידים הראשונים כך היתה מדתן: ערב תשעה באב היו מביאין לו לאדם לבדו פת חרבה במלח ושורה במים, ויושב בין תנור וכירים, ואוכלה ושותה עליה קיתון של מים — בדאגה ובשממון ובבכיה, כמי שמתו מוטל לפניו. וכזה ראוי לחכמים לעשות, או קרוב מזה. ומימינו לא אכלנו ערב תשעה באב תבשיל, אפילו תבשיל של עדשים, אלא אם כן היה בשבת

Everything above is the din all must keep — this is *midat kol ha'am*, who cannot bear more. But the **chasidim harishonim**: on Erev Tisha B'Av a person would eat alone — dry bread with salt, soaked in water to make it edible — sitting between the oven and the stove (the dirty corner of the kitchen), with a small jug of water, **in worry, desolation and weeping, like one whose dead lies before him**. "And thus it is fitting for chachamim to do, or close to it. **And in all our days we never ate a cooked dish on Erev Tisha B'Av — even a dish of lentils — unless it fell on Shabbat.**"

(The Rabbi's note: he had always assumed "we never ate a cooked dish on Erev Tisha B'Av" means at the seudah hamafseket — but re-reading it, the Rambam may mean the entire Erev Tisha B'Av. Worth checking what Rav Kappach says.)

Practical: this year the mafseket is Wednesday afternoon — keep it genuinely simple: bread, one plain dish or none; fruit and vegetables are fine (not "cooked dishes").

Halachot 10–11 — Who Fasts; the Afflictions; Work

Pregnant and nursing women

Exempt from the other fasts — but **must fast on Tisha B'Av**.

Historical note: Rav Sadka Hussein — sent (with many chachamim) from Aleppo, the home of Torah, to Baghdad after the 1743 cholera killed many of Baghdad's rabbis — instituted there that pregnant women should *not* fast, against the Gemara, the Rambam and the Shulchan Aruch: the heat was unbearable and women were miscarrying. **The halacha** remains that a pregnant woman does fast — the default is to *begin* the fast; if she genuinely cannot continue (very relevant if this highly unusual English 30° heat persists next week, in homes without air conditioning), she breaks it.

The afflictions

No washing at all — hot or cold, even a finger in water; no anointing (oil, massages); no leather shoes; no marital relations.

Work on Tisha B'Av

Depends on local custom — but **talmidei chachamim** do not work; and even where custom permits work, **אינו רואה סימן ברכה לעולם** — one sees no blessing from it. Practical: if self-employed and able, don't work the entire day; if employed with limited leave already consumed by the chagim — go, but expect no benefit from that day's work. If you have the choice — refrain.

Halachot 12–13 — Greeting, Learning, Tefillin

Greeting

תלמידי חכמים אין נותנין שלום זה לזה בתשעה באב, אלא יושבים דוים ונאנחים כאבלים. ואם נתן להם עם הארץ שלום — מחזירים לו בשפה רפה וכובד ראש

The Rambam: **talmidei chachamim** don't greet one another; they sit grieving and sighing like mourners; if an am ha'aretz greets them, they answer faintly (so as not to appear to snub him). The Shulchan Aruch — and the universal minhag — extends this to **everyone**. The machloket turns on the Tosefta (3:14): **אין שאלת שלום לחברים בתשעה באב** — the Shulchan Aruch and other Rishonim read *chaverim* as "fellows" generally; the Rambam reads *chaver* in its frequent Gemara sense — **a talmid chacham** — so the specific prohibition is among chachamim.

Learning Torah

ואסור לקרות בתשעה באב בתורה או בנביאים או בכתובים ובמשנה ובהלכות ובגמרא ובהגדות... וקורא הוא באיוב ובקינות ובדברים הרעים שבירמיהו. ותינוקות של בית רבן בטלין בו

Torah gladdens the heart — forbidden across the board; permitted: **Iyov**, **Kinot**, and the harsh passages of **Yirmiyahu**. Schoolchildren are idle that day.

Tefillin — three positions

ומקצת החכמים נוהגין שלא להניח בו תפילין של ראש

Background: the Gemara rules an **aveil on the first day** (the day of death and burial) does not don tefillin, from Yechezkel: **פארך חבוש עליך** — your *pe'er* (splendour), bound upon you — removed from the mourner.

- **Maharam of Rothenburg** (to the Rabbi's knowledge among the first): on Tisha B'Av **no tefillin at all**, no beracha — the day is like **מתו מוטל לפניו**.
- **The Rosh:** you **must** don tefillin — with a powerful kal vachomer: an aveil is forbidden work all seven days yet dons tefillin from day two; on Tisha B'Av abstaining from work is mere custom — all the more so tefillin!
- **The Rambam** records a middle minhag: some chachamim omit only the **shel rosh** — since the verse says *pe'er* on the **head** — donning the shel yad with the beracha להניח תפילין. (The commentaries note the Rambam himself wore full tefillin; the Rabbi knows of no one who keeps the shel-rosh-only practice today.)
- **Today** (Shulchan Aruch, and the general Sefardi and Ashkenazi minhag): tallit and tefillin are worn **at Mincha** rather than Shacharit — a compromise across the shitot.

Halachot 14–19 — The Post-Churban Decrees; the End of the Fasts

Quickly through the final halachot — the takanot instituted after the churban:

- **Unfinished corner:** when building or refurbishing a house, leave a portion incomplete.
- **Jewelry:** a woman never wears her complete set of jewelry at once.
- **The chuppah:** ash is placed on the groom's head (Gemara Gittin; so rule the Rambam and Shulchan Aruch) — many Sefardim do exactly this today (the Rabbi did at his own wedding); Ashkenazim transmuted it into **breaking a glass**.

- **Music: וכן גזרו שלא לנגן בכלי שיר** — not to play, nor even to *hear*, musical instruments — **the entire year**, except at a wedding/seudat mitzvah. Not an Omer or Three-Weeks rule — all year, mi-dina of the Gemara, Rambam and Shulchan Aruch. Why the world is lenient today is a genuinely difficult question; one could argue recorded music (phone, CD) differs from live instruments — but sitting at a live orchestral concert is, by the din, assur. Food for thought.
- **Kriah on seeing Yerushalayim:** one tears the outer garment — still practised today.

Halacha 19 — the destiny of these days

כל הצומות האלו עתידים ליבטל לימות המשיח. ולא עוד אלא שהם עתידים להיות ימים טובים וימי ששון ושמחה, שנאמר: כה אמר ה' צבאות — צום הרביעי וצום החמישי וצום השביעי וצום העשירי יהיה לבית יהודה לששון ולשמחה ולמועדים טובים, והאמת והשלום אהבו

All these fasts are destined to be **annulled** in the days of Mashiach — and more: to become **festivals, days of joy and gladness** (Zechariah). *(Historical footnote: this is why, when Shabtai Tzvi proclaimed himself Mashiach, his followers held banquets on Tisha B'Av and said Ya'aleh V'Yavo in Birkat Hamazon — "Mashiach has come; the fast is a festival." May the genuine article come — perhaps even this year, b'ezrat Hashem, Amen.)*

And with that, Hilchot Ta'aniyot is complete.

Summary

- **The yesod of Perek 5:** the fixed fasts of all Israel exist **לעורר הלבבות ולפתוח דרכי התשובה** — not to commemorate tragedy. From the Yerushalmi's **כאילו הוא החריבו** (active — *we* destroyed it), the Rambam learns the fasts target the *continuation* of our ancestors' ways — hence his choice of the verse confessing **עונם ועון אבותם**: break the cycle.
- **The four fasts** (explicit in Zechariah): 3 Tishrei (Gedalya — the extinguished ember; exile sealed), 10 Tevet (the siege — the origins), 17 Tammuz (five events; the Rambam reads העמיד — Apostomus set up the tzelem), 9 Av (five events; Bet Tor/Beitar and Bar Kochva whom even the gedolei chachamim took for Mashiach; Turnusrufus ploughing Zion). The Rambam reads the Gemara's "shalom" as "the Temple standing" — so today all four are obligatory, not custom.
- **Ta'anit Esther:** a Geonic-era minhag commemorating the *fasting* of Esther's days — hence lenient, and moved *earlier* (to Thursday) when 13 Adar falls on Shabbat.
- **The period:** no "Three Weeks" in the Rambam; ממעטין בשמחה from Rosh Chodesh = reduced business, luxury building, and weddings (per 3:8). The real Gemara restrictions are the **week of Tisha B'Av**: no haircuts/shaving, no laundering, no fresh clothes (prepare by pre-wearing) — and everything permitted **immediately** after the fast.
- **Seudah hamafseket:** no meat/wine as **zecher l'Mikdash** (hence the three-day thresholds — what is unfit for the mizbe'ach is permitted); one cooked dish (mejadra counts as one); the chasidim harishonim's dry bread between the oven and stove, **כמי שמתו מוטל לפניו**.
- **Tisha B'Av:** night like day; the five innuyim; pregnant women fast (begin, at least); work sees no blessing; talmidei chachamim don't greet (Rambam) — everyone (Shulchan Aruch); only Iyov, Kinot and the harsh Yirmiyahu; tefillin at Mincha today (Maharam vs Rosh; the Rambam's shel-rosh minhag).
- **The end of the story:** all these fasts will become **yamim tovim** — ימי ששון ושמחה.

Coming Up

No shiur next Thursday — Tisha B'Av itself. The final shiurim before the summer break are **Monday** (HaMaspik — completing the levels of bitachon and the chapter summary) and **Tuesday** (Moreh — Chapters 14–16), and then we break until Elul.

B'Ezrat Hashem

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